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Bill allowing collegiate athletes to profit off name, likeness clears another step in California legislature

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As California inches ever closer to a direct and potentially landscape-altering conflict with the NCAA, the state took another step Tuesday toward allowing its collegiate athletes to profit off of their names, images and likenesses.

The Fair Pay to Play Act, which was written as a direct rebuke of the NCAA and its long-standing rule barring athletes from receiving outside compensation, passed through the state Assembly's Higher Education Committee on Tuesday with a unanimous 9-0 vote.

With an identical bill already approved by the state Senate, the Assembly's bill will next be heard in August by the Appropriations Committee. From there, it would first move to the Assembly floor, then, if passed again, onto the Governor's desk.

"No one else under California law can market your name, image or likeness without your permission," said state senator Nancy Skinner (D-Berkeley), who co-authored the bill. "Only student-athletes are prevented from that."

If that were the case in any other industry, Skinner added, "there would be universal outcry."

But the NCAA has long clung to its strict definition of amateurism, maintaining that its athletes should not be allowed to profit from such possible revenue channels, which could include anything from local sponsorships to autograph and apparel deals. In a letter last month, before the bill was first heard in committee, NCAA president Mark Emmert warned of "unintended consequences" and lobbied to postpone the bill, which he wrote "threatens to alter materially the principles of intercollegiate athletics."

Chargers left tackle Russell Okung, who spoke in favor of the bill Tuesday, didn't disagree with that assessment.

"(Emmert) is absolutely correct," Okung told the committee. "These so-called principles of the NCAA should be materially altered because they are far from virtuous."

If passed, the bill would not go into effect until 2023, which, according to the bill's co-authors, would give the NCAA ample opportunity to change its rules and the state plenty of time to make future adjustments.

In May, the NCAA announced it would form a commission to explore the possibility and potential pitfalls of allowing its athletes to profit off his or her name, image or likeness. But in the same announcement, Emmert made clear that the NCAA would not consider "concepts by which student-athletes are considered employees and paid for their athletics participation."

No such shift would occur under the Fair Pay to Play Act, which would not allow universities to pay collegiate athletes, but rather prohibit them from penalizing athletes for seeking such compensation from outside sources. On Tuesday, with that opposition in mind, several members of the Assembly's Higher Education committee expressed their doubt that the governing body would make any such changes unless otherwise forced.

"The NCAA is going to move as slow as it wants to move," Assemblymember Marc Levine (D-Marin County) said. "Whether this bill becomes law is almost secondary to the fact that we need to coax this conversation further than it ever has been."

Long Beach State athletic director Andy Fee, who spoke against the bill, said he was not opposed to having that

conversation. "It's the mechanism that I oppose," he said.

Along with several state and private universities that stood against the bill Tuesday, Fee warned, like Emmert, of "unintended consequences," such as a collegiate athlete partnering with a gambling entity or marijuana dispensary, both of which the NCAA has vehemently opposed in the past.

One of the purported consequences, however, seemed to be dispelled during Tuesday's hearing.

Several committee members expressed concern that universities in the state could be excluded from NCAA member events, after Emmert implied as much in his letter to the Assembly's Arts, Entertainment, Sports, Tourism and Internet Media Committee. But attorney and sports law expert Marc Edelman noted for the committee Tuesday that such an action would presumably violate antitrust law under the Sherman Act.

As the NCAA again mounts an impassioned defense of amateurism, many committee members took the chance Tuesday to express their dismay with the current system and the governing body that maintains it. Assemblyman Jesse Gabriel (D-West San Fernando Valley) called the NCAA's amateurism rules "deeply exploitative," and assemblywoman Shirley Weber (D-San Diego) likened it to "a slave system."

To Assemblyman Steven Bradford (D-Los Angeles), a co-author of the bill, the root issues addressed by the Fair Pay for Play Act aren't about sports at all.

"It's about fairness," Bradford said. "It's about allowing young men and women to take advantage of the small window ... to monetize their name and likeness."

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